

**Consultation
on changes to the
Transport Policy for
Children and Young
People with Special
Educational Needs**

February 2014

Consultation Document

What are we proposing to do?

This consultation document is about proposed changes to the Transport Policy for children and young people with special educational needs and disabilities (SEND).

It is proposed that the county council:

- introduces a parental contribution for discretionary Post 16 transport support of £475 per annum with effect from September 2014.
- applies a formulaic increase to future years' concessionary charge that is on the basis of Retail Price Index (RPI) plus 5%.

The proposed changes would ensure that transport provision for children and young people with special educational needs and disabilities can continue to be provided in a transparent, supportive and cost-effective way for families.

It is proposed that the changes will be introduced from September 2014.

The county council wants to hear your views on these important proposals. If you have difficulty in accessing this information, please contact the Inclusion and Disability Support Service on:

Telephone **01772 532241** or **01772 530839** or email us at idss@lancashire.gov.uk

Foreword



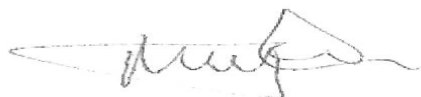
In Lancashire, we believe that children and young people come first. We want them to enjoy their time at school, make good progress, and achieve their best. This is particularly so for those children and young people who have a special educational need or disability (SEND).

Lancashire County Council is facing cuts in funding of up to £300m over the coming years. Transporting children and young people with special educational needs and disabilities to and from school or college is very costly.

Over the last seven years the cost of home to school transport for children and young people who have a special educational need or disability has significantly increased. It is important that we work together to deliver high quality services to families in genuine need and reduce inefficiencies wherever possible.

The county council works together with parents and other service providers to help our children to be safe, to enjoy and achieve, to be listened to, to belong to the community and to achieve economic wellbeing.

I hope that you will take a little time during this consultation period to let us know your views on what we are proposing to do. We will not make a decision until we have carefully considered all responses to this consultation.

A handwritten signature in black ink, appearing to read 'Matthew Tomlinson', written in a cursive style.

County Councillor Matthew Tomlinson
Cabinet Member for Children, Young People and Schools

PART ONE

Our vision and what we would like to achieve

Education is a powerful means of transforming and enriching lives and communities. Future success and well-being depends on new ways of working, high expectations and a belief that we all have a part to play and can make a difference together.

Most pupils who have a special educational need or disability will attend their local primary or secondary school; however, some pupils will attend a special school, or special unit in a mainstream school - this could be in Lancashire or further afield.

Some pupils are, or may be entitled to, transport assistance provided by the local authority to and from their school. Where this happens, our aim is to ensure that each child has suitable travel arrangements in place, which enable them to travel without stress, strain or difficulty, and in reasonable comfort and safety.

To determine each child's transport and travel needs, we look very carefully at what is said in their statement of special educational needs, and listen to the views of their parents or carers, and the relevant professionals. There is a need to improve and simplify this process so that families understand what transport assistance they can expect to receive.

Where it is appropriate we want to encourage progression to independent travelling, in a phased, supported way. This can increase confidence in using public transport, increasing participation in community life and can help to prepare a young person for life beyond school and college.

Overall our policy, when compared to other local authorities, is quite generous in that it extends beyond the legal duty placed upon the county council to provide home to school transport. For example, current entitlement applies to children over 16 years attending further education (FE) provision and provides free transport support for young people starting a new course aged 16 to 24 with special educational needs or disabilities to attend school or college.

By continuing to heavily subsidise this support we will maintain our commitment to shield families from the full cost of tailoring transport to their children's needs.

PART TWO

Proposal

It was agreed on the 5 December 2013 by the Cabinet Member for Children, Young People and Schools to consult on changes to the Transport Policy for Children and Young People with Special Educational Needs and Disabilities (SEND).

It is proposed that the County Council:

- introduces a parental contribution for discretionary Post 16 transport support of £475 per annum with effect from September 2014.
- applies a formulaic increase to future years' concessionary charge that is on the basis of Retail Price Index (RPI) plus 5%.

The cost of providing home to school transport for children and young people with special educational needs and disabilities (SEND) in the financial year 2012/13 was £16.26 million. 2,907 pupils currently receive free travel to school or college, the majority of them attending special schools. The average annual cost per pupil to provide SEN transport is approximately £5,500; the proposed charge of £475 per annum represents a small proportion of the average costs per pupil.

Local authorities have certain statutory responsibilities around home to school transport and have the discretion to offer additional provision where deemed appropriate. 83% of the overall current costs of transport provision were spent on statutory transport responsibilities; the remainder being spent on non-statutory (discretionary) transport provision.

In view of the considerable financial pressures which the County Council faces, both currently and in the foreseeable future, we need to review the Home to School Transport Policy for Children and Young People with SEND with a view to identifying possible savings.

Home to school/college transport support for post-16 young people with special educational needs and disabilities (SEND) is a discretionary policy area. The current Home to School Transport Policy for children and young people with special educational needs and disabilities provides discretionary door to door transport for young people aged between 16 and 19 where they meet the eligibility criteria which applies to those pupils aged under 16.

Requests for post-16 SEND transport assessments have increased three-fold since the policy was amended in 2008 in favour of free transport for all eligible SEND learners aged 16 to 24 which increased the home to school/college transport costs for children and young people over 16, with SEND to c£2.5m per annum.

The number of pupils who received discretionary free travel in 2012/13 was 493 at a cost to the County Council of £2.74 million.

Mainstream post-16 students in Lancashire attending school sixth forms and further education colleges do not receive any financial support from the Council to fund their transport costs.

Given the overall financial position of the Council and in developing options for amending post-16 SEND transport support, consideration has been given to the national picture where a significant number of local authorities ask for a contribution towards transport support for post 16 young people with SEND (for example, Northamptonshire, Worcestershire, Calderdale, Devon, Essex, Norfolk, Staffordshire, Warwickshire).

Consideration has also been given to the importance of enabling students to access further education. To mitigate the impact of the financial contribution it is proposed that Post 16 SEND students from low income families (defined by entitlement to free school meals or parents/carers in receipt of maximum levels of working tax credit) would be exempt from the charge.

Implementation of the proposed contribution would still result in the County Council providing a large subsidy to support transport for the most vulnerable students who, due to the impact of impairment or disabling circumstances, cannot safely travel by other means to the nearest available establishment that meets their identified learning needs.

We wish to hear your views on the introduction of a parental contribution to apply to discretionary post 16 SEND transport as set out above with effect from September 2014.

PART THREE

The consultation and decision making process

Timescales

3 February 2014 to 25 April 2014	Consultation (12 weeks)
26 April 2014 to May 2014	Consultation feedback reviewed and proposals amended if necessary
May 2014	Cabinet Member decision making session to consider the results of the consultation and decide whether to proceed with the proposals
June 2014	2014 Transport Policy for children and young people with special educational needs and disabilities published
September 2014	Implementation

Who we will consult

This consultation document will be provided to people and organisations who may have an interest in these proposals.

These include the following:

- Parents/guardians/carers of children and young people who receive transport support.
- Lancashire Parent Carer Forum.
- Headteachers and chairs of governors of special schools across the county.
- Lancashire further education providers.
- Independent, non-maintained special schools where LCC pupils are placed.
- Local authorities which maintain a statement of educational need for children attending a school within the county or who may be affected by the proposals.
- Other local authorities bordering Lancashire.
- Lancashire Youth Council.
- Family Information Service.
- Lancashire Welfare Rights Service.
- The wider community – through 'Have your Say' website
www.lancashire.gov.uk/haveyoursay

Your Response

As stated earlier in this document, we welcome your views on this proposal and all observations and objections will be considered very carefully before any decision is made to progress any further.

The consultation runs until 25 April 2014 and you can respond by completing the questionnaire in this document or writing separately:

By Post to:
Corporate Research and Intelligence (Room A39)
Lancashire County Council
County Hall
PR1 0LD

By Email to: idss@lancashire.gov.uk

Online at: www.lancashire.gov.uk/haveyoursay

The information provided in this document is intended to be sufficient for people to form a view on the proposal. However, at this stage we need to listen to your views and concerns so that the detailed proposals which we make later in the process can take these into account.

We are sorry that due to the volume of responses we receive when consulting on proposals we will not be able to acknowledge written responses nor enter into correspondence with interested parties during or after the consultation period. We have included any relevant frequently asked questions (FAQs) with answers within this document and this will also be posted on the council website at: www.lancashire.gov.uk/haveyoursay

Thank you